

PLJ 2022 Lahore 480 (DB)

Present: MASUD ABID NAQVI AND SHAHID BILAL HASSAN, JJ.

JAFAR ALI--Appellant

versus

LAHORE DEVELOPMENT AUTHORITY etc.--Respondents

I.C.A. No. 67102 of 2021, heard on 27.1.2022.

Law Reforms Ordinance, 1972--

----S. 3(2)--Lahore Development Authority Land Use Rules, 2014, R. 27--Application for commercialization of property--Decided as per direction in writ petition filed by petitioner--Maintainability--As per proviso (2) of Section 3 of Law Reforms Ordinance 1972, no appeal will be available or competent before a bench of two or more judges of a High Court from an order passed by a Single Judge of that Court in constitutional petition, if such petition arises out of any proceedings in which law applicable provides at least one appeal against original order--By bare reading of record as well as plain reading of provisions of law, we find that this appeal is not maintainable--Petition was dismissed. [P. 481] B

Lahore Development Authority Land Use Rules, 2014--

----R. 27--Appeal--Any person aggrieved by an action taken under these rules, may, within thirty days, file an appeal before Government.

[P. 481] A

Syed Faisal G. Meeran, Advocate for Appellants.

Sahabzada Muazaffar Ali, Advocate for Respondents.

Date of Hearing: 27.1.2022.

JUDGMENT

Masud Abid Naqvi, J.--Brief facts of this appeal are that appellant filed an application for commercialization of his property before the Director Commercialization, LDA Lahore and the same was

decided in view of direction passed by the learned Single Judge in Chamber in Writ Petition No. 28162/2019 *vide* order dated 25.09.2019. Aggrieved by the above mentioned order, the appellant filed Writ Petition No. 8571/2020 which was disposed of by the learned Single Judge in Chamber *vide* order dated 05.10.2021 and the same order is challenged through this intra Court appeal.

2. Learned counsel for respondents/LDA argues that this appeal is not maintainable in view of Rule 27 of Lahore Development Authority Land Use Rules, 2014 ("Rules 2014") as the order dated 25.09.2019 passed by the Director Commercialization LDA Lahore was/is an appealable order as the same was/is passed under Rule 31 of the Rules 2014, *ibid*, while learned counsel for the appellant has failed to convince this Court regarding the maintainability of this appeal by referring any relevant provision of law/rules whatsoever.

3. Clearly, against the order dated 25.09.2019 passed by the Director Commercialization, LDA Lahore, the appellant had' the remedy of an appeal under Rule 27 of Rule 2014, which is reproduced for ready reference:

27. Appeal. (1) *Any person aggrieved by an action taken under these rules, may, within thirty days, file an appeal before the Government.* D,

(2)-----

(3)-----

4. As per the proviso (2) of Section 3 of Law Reforms Ordinance 1972, no appeal will be available or competent before a bench of two or more judges of a High Court from an order passed by a Single Judge of that Court in constitutional petition, if such petition arises out of any proceedings in which the law applicable provides at least one appeal against the original order. By bare reading of record as well as plain reading of provisions of law, we find that this appeal is not maintainable and the same is hereby **dismissed.**

(Y.A.) Appeal dismissed